Supplemental Statement of Kevin D. Turnage

Administrative Inquiry Interview – September 25, 2025 – Affidavit 2

OSC Case No.: MA-25-004957

Note: The OSC Case No. is provided here for reference and record-keeping purposes only. I recognize that the agency has designated this administrative inquiry as a separate internal matter; however, because the facts and allegations overlap with the issues raised in my OSC complaint, I have included the OSC Case No. solely to ensure accuracy, consistency, and preservation of rights under 5 U.S.C. § 2302.

I. Purpose of This Statement

Pursuant to 28 U.S.C. § 1746, I, Kevin D. Turnage, submit this Supplemental Statement to accompany Affidavit 2 prepared from the September 25, 2025, Administrative Inquiry Interview.

This statement is necessary to correct inaccuracies in the transcription, clarify my answers, and document procedural irregularities affecting the integrity of the process.

II. Corrections to Affidavit Responses

Q1(a)/A1(a)

My affidavit currently states: "I'm not sure I understand what you're asking about. I don't know what you're talking about."

My corrected answer should state:

"I deny that I knowingly used personal equipment to conduct official IHS business. I am not aware of the specific conduct alleged, and without records I cannot confirm what is being referenced. Any work performed was conducted in good faith to fulfill my duties, not to circumvent policy."

Q1(b)/A1(b)

My affidavit currently states: “I'll refer you back to my last response.”

My corrected answer should state:
“I deny knowingly using personal equipment for official IHS communications or documentation. My work was conducted through official channels to the best of my knowledge.”

Q2/A2

My affidavit currently states: “Do not know what you're referring to.”

My corrected answer should state:
“I deny knowingly using non-IHS email accounts to conduct official IHS business. I do not recall doing so, and I have no records to confirm the allegation.”

Q3/A3

My affidavit currently states: “Again, asked again, answered.”

My corrected answer should state:
“I deny knowingly storing, transmitting, or processing IHS information on non-IHS email systems. I have no recollection of doing so.”

Q4/A4

My affidavit currently states: “Again, asked and answered … I cannot answer … I have no knowledge.”

My corrected answer should state:
“I deny using artificial intelligence tools such as Grammarly or similar applications to conduct federal business. I have no knowledge of the allegation and have never knowingly used such tools in my official duties.”

Q5/A5

My affidavit currently states: “I have no clue what you’re asking about.”

My corrected answer should state:
“When I transitioned from PCMC SCN to Policy and Procedure Officer, I did not retain or use any employee health information. I had no continuing role or access to that information once my supervisory responsibilities ended.”

Q6/A6

My affidavit currently references following Policy Management Policy, consulting SMEs, and Mr. Pope overriding workflows.

My corrected answer should state:
"When concerns arose regarding policy, I followed the Policy Management Policy, consulted the subject matter expert or policy owner, and elevated unresolved issues through the chain of command. I complied with the established Policy Management Policy at all times. Mr. Pope, however, frequently overrode workflow steps, which affected the process."

Q7/A7

My affidavit currently states: "Mr. Pope changed the Policy Management Policy several times."

My corrected answer should state:
"Mr. Pope changed the Policy Management Policy several times, overriding the workflow. The details are documented in the policy history records. I cannot provide precise dates or text without access to those records."

Q8/A8

My affidavit currently states: "I followed the chain of command."

My corrected answer should state:
"I addressed concerns about my assigned role and responsibilities by reporting them through the chain of command, starting with my immediate supervisor and escalating when necessary."

Q9/A9

My affidavit currently states: "I didn't bypass the normal reporting structure, with Clinton Pope, sent to Kathy Dill, Chief Operations Officer, then Deb Ward Lund, then governing body, then headquarters. That is the chain of command."

My corrected answer should state:
"I did not bypass the normal reporting structure. I reported through the established chain: Mr. Pope, COO Kathy Dill, CEO Deb Ward Lund, the governing body, and headquarters. That is the chain of command. My escalation beyond Mr. Pope occurred only when issues remained unresolved, and was consistent with Agency policy and my duty to ensure compliance and patient safety."

Q9(a)/A9(a)

My affidavit currently states: “I did consult with Dr. McCabe before I reached out to headquarters. The response I typically got, it didn't do any good.”

My corrected answer should state:
“Yes, I consulted with Dr. McCabe before escalating to headquarters. His responses did not resolve the issues, and I felt compelled to escalate further in order to seek compliance corrections and protect patient safety.”

Q9(b)/A9(b)

My affidavit currently states: “Corrections of errors.”

My corrected answer should state:
“By escalating, I expected timely correction of identified compliance and patient-safety issues; restoration and adherence to the Policy Management Policy workflow; clear written direction from leadership; and remedial actions to mitigate risk, ensure regulatory compliance, and support safe operations.”

Q9(c)/A9(c)

My affidavit currently states: “Without my government computer, and my email, I cannot give you specific examples of anything. I do not want to provide false information.”

My corrected answer should state:
“Without access to my government computer and email, I cannot responsibly cite specific examples. Relevant records are within the Agency’s custody. Upon restoration of access or production of those records, I can identify the precise items. In general, the corrections I sought involved enforcing the Policy Management Policy as written, ensuring proper approvals, and resolving compliance discrepancies that affected patient safety.”

Q10/A10

My affidavit currently states: “I used the terms ‘reject/rejected’ because the Policy Management Policy listed me as final approver.”

My corrected answer should state:
“I used the terms ‘reject/rejected’ because the Policy Management Policy in place at the time, authored by Mr. Pope, expressly listed me as the Policy and Procedure Officer and final approver in the workflow. I followed the policy as written.”

Q10(a)/A10(a)

My affidavit currently states: "I was following the Policy Management Policy as written."

My corrected answer should state:
"I did not intend to disregard directives from management. I followed the governing Policy Management Policy, which assigned me approval authority. I believed I was obligated to comply with the written policy."

Q11/A11

My affidavit currently states: "I already provided responses to Ethics."

My corrected answer should state:
"I responded fully to IHS Ethics regarding the crowdfunding campaign. Ethics should have my complete written response on record."

Q12(a)/A12(a)

My affidavit currently states: "If I am not mistaken, I took that down. I am pretty sure I took that down after they contacted me."

My corrected answer should state:

"To my knowledge, I removed references to my federal position after IHS Ethics contacted me on August 18, 2025. If any reference remained, that was inadvertent. My intent was to comply fully with Ethics guidance."

Q12(b)/A12(b)

My affidavit currently states: "I do not have that document in front of me … Ethics Department would be more than happy to provide my response."

My corrected answer should state:
"I do not have my correspondence with me. IHS Ethics maintains the official record of my response, which was provided to them in writing. They should have that document available for the record."

Q12(c)/A12(c)

My affidavit currently states: “That response was already given to Ethics.”

My corrected answer should state:
“I provided my full explanation to IHS Ethics. I did not intend to misrepresent myself. I referenced my federal role for context, not for personal gain, and corrected this after Ethics guidance.”

Q12(d)/A12(d)

My affidavit currently states: “No.”

My corrected answer should state:
“No, I did not receive any funding from the campaign.”

Q13/A13

My affidavit currently states: “I do not know what you are referring to.”

My corrected answer should state:
“I do not recall the situation described. Without specific details, I cannot confirm or deny the interaction. To my knowledge, I did not provide HR guidance to any PIMC employee outside my supervisory line or chain of command.”

Q14/A14

My affidavit currently states: “Again, I have no idea what you're talking about … too broad and too vague to give you an answer.”

My corrected answer should state:
“The question is too broad and vague to answer without clarification. I do not recall providing EEO or ER/LR guidance to any PIMC employee outside my supervisory line or chain of command. Without specific details or records, I cannot provide a definitive answer.”

III. Reference to Records and Communications

Several interview questions referred to prior communications, including emails, policy workflow exchanges, and leadership directives. Because my access to government systems was removed before the interview, I cannot fully recollect or accurately respond.

These matters were documented in contemporaneous communications between myself, Mr. Clinton Pope, Dr. McCabe, the COO, the CEO, the Executive Leadership Team, and,

in some instances, Ms. Naomi Hixson in her capacity as Compliance Officer. I copied Ms. Hixson to ensure my compliance-related disclosures were directed to appropriate oversight officials consistent with the chain of command.
I respectfully note that such records are in the possession and control of the agency and request they be preserved and made available through proper legal process.

My recollection is that these communications confirm:
1. I escalated concerns through the proper chain of command.
2. My use of policy workflow terminology was consistent with my role and instructions at the time.
3. Executive leadership and headquarters were involved in reviewing the policy matters I raised.

IV. Warnings and Assurances Statement Date Discrepancy

During the September 25, 2025 interview, Investigator Naomi Hixson stated that the interview was conducted in accordance with a Warnings and Assurances Statement I had allegedly signed on November 15, 2025.

I do not recall at this time whether I signed such a statement or, if I did, the date on which I signed it. However, it is not possible that I signed a document dated November 15, 2025 prior to my September 25, 2025 interview. I note this discrepancy as a procedural irregularity that undermines the accuracy of the record and may misrepresent the protections afforded to me at the time of questioning.

V. Notice Regarding WPA and PPP

These corrections and clarifications are submitted not only to ensure accuracy but also to place the agency on notice that pressing me for information I cannot recall without access to my records constitutes retaliation for protected disclosures.

Such conduct violates the Whistleblower Protection Act, 5 U.S.C. § 2302(b)(8), and constitutes a Prohibited Personnel Practice under 5 U.S.C. § 2302(b)(9). My inability to answer is the direct result of management's decision to remove my system access, and any attempt to construe my lack of recall as misconduct would further constitute unlawful retaliation.

VI. Statement of Accuracy

These corrections are made in addition to the handwritten edits and initials I provided directly on the affidavits. Both this Supplemental Statement and my marked affidavits should be incorporated into the official record.

VI. Preservation of Evidence Notice

On August 11, 2025, I sent Litigation Hold and Demand for Preservation of Evidence letters, with Certificates of Service, by U.S. Certified Mail to the following recipients:
• U.S. Department of Health and Human Services – Tracking No. 9214 8901 4298 0424 3893 17
• The Honorable Robert F. Kennedy, Jr. – Tracking No. 9214 8901 4298 0424 3893 00
• Ty Reidhead, Area Director, Phoenix Area – Tracking No. 9214 8901 4298 0424 3892 94
• Debra Ward Lund, Chief Executive Officer, Phoenix Indian Medical Center – Tracking No. 9214 8901 4298 0424 3892 87

Tracking records confirm receipt of these notices.

These letters placed the agency and its leadership under a duty to preserve all records, emails, communications, and related evidence relevant to my disclosures and the issues now under investigation. Any failure to preserve such records would constitute spoliation of evidence and a violation of federal law and discovery obligations.

VII. Declaration

I declare under penalty of perjury under the laws of the United States of America that the foregoing is true and correct.

By my signature below, I acknowledge that I have read and understood my Supplemental Statement consisting of eight (8) pages, and further acknowledge that I have not been coerced, intimidated, or forced into making any false or untrue statements. I affirm that I have made all changes and corrections I desire to make, and I have initialed each change in the attached affidavits. This Supplemental Statement represents my final and true statement for the record.

Executed on September 26, 2025

Kevin D. Turnage